

1.

CASE #	CASE NAME	HEARING NAME
CVPS2507651	MURPHY VS 1ST CHOICE PAINT AND BODY INC., A CALIFORNIA CORPORATION	MOTION FOR LEAVE TO INTERVENE BY TRAVELERS CASUALTY INSURANCE COMPANY OF AMERICA AS INTERVENOR ON BEHALF OF 1ST CHOICE PAINT AND BODY, INC., A SUSPENDED CALIFORNIA CORPORATION

Tentative Ruling: Granted.

No opposition filed.

Moving party to file their responsive pleading within 5 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508301	GRIMALDI HENDRIX VS LEITMAN	MOTION TO COMPEL TO DEEM REQUESTS FOR ADMISSION ADMITTED; (2) COMPEL RESPONSES TO SPECIAL INTERROGATORIES; AND (3) COMPEL RESPONSES TO REQUESTS FOR PRODUCTION BY ALEXANDER GRIMALDI HENDRIX

Tentative Ruling: Granted.

No opposition filed.

Moving party to provide notice pursuant to CCP 1019.5.

All matters in the Request for Admissions, Set One, Nos. 1-8, are deemed admitted, unless responding party has served verified responses that substantially comply with the requests prior to the time of the hearing, and in that case the motion is denied. No attorney fees or costs since Plaintiff is self represented with a fee waiver.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2509978	BREWER VS CRYSTAL CHRYSLER DODGE JEEP RAM	MOTION TO COMPEL DEPOSITION OF PLAINTIFF BY FCA US LLC

Tentative Ruling: Hearing continued to Tuesday, August 11, 2026 at 8:30 a.m. in Department PS2.

Plaintiff Benjamin Brewer brings this Song-Beverly action regarding a 2024 Jeep Wrangler that has defects to the electric battery, engine, transmission and electrical system. The complaint, filed 6/23/25, asserts: (1) Civil Code § 1793.2(d); (2) Civil Code § 1793.2(b); (3) Civil Code § 1793.2(a)(3); (4) breach of implied warranty of merchantability; (5) negligent repair; and (6) fraudulent concealment. Trial is not set.

Defendants move to compel Plaintiff's deposition to take place within 15 days. On 11/20/25, Defendants served a notice of deposition for deposition to take place on 2/3/26. Plaintiff's counsel emailed unavailability and objected. Defendants followed up asking for alternative dates, but Plaintiff failed to provide any dates.

In an untimely opposition, Plaintiff contends that he is seeking to dismiss the claims and requests the court continue the hearing 30 days to allow the dismissal or deem the motion as moot.

Motion to Compel Deposition of Plaintiff

Service of a proper deposition notice is sufficient to compel a party to appear, testify and produce records in their possession without a subpoena. (Code Civ. Proc., § 2025.280(a).) Section 2025.450(a) states: "If after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (emphasis added.) The parties are required to meet and confer, or in the case of a nonappearance, the moving party inquired about the non-appearance. (*Id.* at § 2025.450(b)(2).)

Here, Plaintiff does not dispute that he failed to appear, but instead, intends to dismiss the action. Court will continue the instant motion to the current TSC date of August 11, 2026 with expectation that deposition has moved forward or Plaintiff has dismissed their claims.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2601132	CAMERILLO VS ROSALES	DEMURRER ON 1ST AMENDED COMPLAINT OF DANIEL CAMERILLO AS TO EIGHTH CAUSE OF ACTION BY JAVIER ROSALES, ARMANDO ALVAREZ, ARMANDO BAR & GRILL, INC. A CALIFORNIA CORPORATION

Tentative Ruling: Overruled.

Moving Defendant to file their answer to operative complaint within 20 days of this order becoming final.

Court to provide notice.

The court also sets an OSC re: sanctions as to Plaintiff's counsel Attorney Ben-Ari regarding his refusal to meet and confer by phone with Defendants' counsel as required by CCP section 430.41 for September 1, 2026 at 8:30 a.m. in Department PS2.

This is a wrongful termination action filed on February 9, 2026 by Plaintiff Daniel Camerillo against Defendants Armando Bar & Grill, Inc., Javier Rosales and Armando Alvares alleging 8 causes of action for 1) wrongful termination in violation of public policy, 2) whistleblower retaliation, 3) failure to provide meal periods, 4) failure to provide rest periods, 5) failure to pay minimum wages, 6) failure to provide accurate itemized wage statements, 7) waiting-time penalties and failure to provide wages upon termination, and 8) UCL violations.